

26SMCV01728 26SMCV01728

County: los-angeles

Division: Civil Law and Motion

Department: 207

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Case Number: 26SMCV01728 Hearing Date: August 13, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 13, 2026

CASE NUMBER

26SMCV01728

MOTION

Demurrer

MOVING PARTY

Defendant City of Los Angeles

OPPOSING PARTY

Plaintiff WSBO LLC

MOTION

This case arises from a dispute between the owner of coastal property and the City of Los Angeles ("City") and City of Los Angeles Department of Water and Power ("LADWP") concerning the construction of two Pole-Top Distribution Stations ("PTDS") adjacent to Plaintiff's coastal property allegedly in violation of the California Coastal Act.

On April 1, 2026, Plaintiff WSBO LLC ("Plaintiff") brought suit against the City and LADWP alleging that Defendants constructed the first PTDS in 2016 without first obtaining the proper permits, and obstructing the coastal view, in violation of the California Coastal Act, but received a waiver after-the-fact on the grounds that it was meant to be temporary, though it still stands, ten years later.

Now, Defendants are apparently in the process of constructing a second PTDS adjacent to the first and adjacent to Plaintiff's property, allegedly again without first obtaining the necessary permits and approvals, and again in violation of the California Coastal Act.

The Complaint alleges five causes of action for (1) Violations of the California Coastal Act – New PTDS; (2) Violations of the California Coastal Act – Existing PTDS; (3) Violation of the City of Los Angeles General Plan; (4) Continuing Public Nuisance; and (5) Violation of Conditions of Coastal Development Permit No. 16-14.

City now demurs to all five causes of action on the grounds the Complaint fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). Plaintiff opposes the demurrer and City replies.[1]

REQUEST FOR JUDICIAL NOTICE

City requests judicial notice of the following:

Exhibit A: Mayor Karen Bass' Emergency Executive Order EO 1

Exhibit B: Mayor Karen Bass' Emergency Executive Order EO 1, revised

Exhibit C: Mayor Karen Bass' Emergency Executive
Order EO 5

Exhibit D: Mayor Karen Bass' Emergency Executive
Order EO 8 and Partially Revised EO 1

Exhibit E: Mayor Karen Bass' Emergency Executive
Order EO 10

Exhibit F: Governor Gavin Newsom's Executive
Order N-4-25

Exhibit G: Governor Gavin Newsom's Executive
Order N-9-25

Exhibit H: Governor Gavin Newsom's Executive
Order N-14-25

Exhibit I: Governor Gavin Newsom's Executive
Order N-18-25

Exhibit J: Governor Gavin Newsom's Executive
Order N-20-25

Exhibit K: Governor Gavin Newsom's Executive
Order N-24-25

Exhibit L: Governor Gavin Newsom's Executive
Order N-29-25

Exhibit M: Governor Gavin Newsom's Executive
Order N-1-26

Exhibit N: The February 2026 Palisades
Infrastructure Restoration Plan

Exhibit O: Coastal Development Permit ("CDP") No.
16-14

Exhibit P: The City of Los Angeles (“City”) staff
report recommending approval of CDP No. 16-14

Exhibit Q: The Coastal Commission’s de minimis
waiver issued for the project contemplated in CDP No. 16-14

Exhibit R: The City’s notice of intent to issue
CDP No. 16-14, which attaches CDP No. 16-14

Exhibit S: The Coastal Commission’s notice of
final appeal action related to an appeal of CDP No. 16-14

Exhibit T: relevant portions of The City’s
Mobility Plan 2035

Exhibit U: The Coastal Commission’s most current
list of certified Local Coastal Programs

Exhibit V: The Coastal Commission’s staff report
supporting its No Substantial Issue determination

Regarding Exhibits A-M and O-V,
judicial notice may be taken of “official acts” of the legislative, executive,
and judicial departments of the United States and of any state of the United
States. As such, the Court takes
judicial notice of those exhibits.

However, with respect to Exhibit N,
City requests judicial notice on the ground that it is not reasonably subject
to dispute and is capable of immediate and accurate determination by resort to
sources of reasonably indisputable accuracy, pursuant to Evidence Code section
452, subdivision (h). The court
disagrees that a document prepared by a private company and submitted to the
City is not reasonably subject to dispute or capable of immediate and accurate
determination by resort to sources of reasonably indisputable accuracy. As such, the Court denies judicial notice of
Exhibit N.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 ["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint "with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, "[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

FAILURE TO STATE A CAUSE OF ACTION

i.

First Cause

of Action – Violations of the California Coastal Act – New PTDS

Public Resources Code section 30803, subdivision (a) provides: "Any person may maintain an action for declaratory and equitable relief to restrain any violation of this division[.]" (Pub. Res. Code, § 30803.)

Public Resources Code section 30600 provides that, in addition to obtaining any other permit required by law, any person wishing to perform or undertake any development in the coastal zone shall obtain a coastal development permit. (Pub. Res. Code, § 30600, subd. (a).)

"Development" is defined as "the placement or erection of any solid material or structure[.]" (Pub. Res. Code, § 30106.)

Here, Plaintiff alleges:

1. In 2016, the Los Angeles Department of Power and Water ("LADWP") violated the California Coastal Act by constructing an above-ground pole-top distribution station within the Coastal Zone ("Existing PTDS") without first obtaining the required Coastal Development Permits from the City of Los Angeles ("City") and the California Coastal Commission ("CCC").
2. Because the Existing PTDS is located on Sunset Boulevard, which is a designated Scenic Highway, it also violated the City of Los Angeles' General Plan, which requires "To the maximum extent feasible, all new or relocated electric, communication, and other public utility distribution facilities within five hundred feet of the center line of a Scenic Highway shall be placed underground."
3. Only after imposing this visual blight did LADWP obtain a Coastal Development Permit ("CDP") from the City and a waiver of the requirement for a CDP from the CCC, and it did so by characterizing the Existing PTDS as a "temporary measure" that would be removed once a new permanent power distribution station was operational. In other words, LADWP acted unilaterally and in violation of California law to implement a "temporary" solution that has predictably remained in place for nearly a decade without any attempt to implement the permanent power solution it promised for the Palisades community.

4. Rather than honor its commitment to remove the “temporary” 2016 Existing PTDS, LADWP is now doubling down on its “seek forgiveness, not permission” strategy by yet again unilaterally constructing an additional PTDS (“New PTDS”) approximately fifty feet from the Existing PTDS without first obtaining the required permits.

5. On March 23, 2026, Plaintiff observed that new poles and additional materials for the proposed New PTDS had been placed in the right-of-way immediately adjacent to the Property and near the Existing PTDS.

6. On March 30, 2026 Defendants mobilized to facilitate the implementation of the proposed New PTDS.

11. The Property, the Existing PTDS, and the proposed New PTDS are also all located in a Very High Fire Hazard Severity Zone, and the January 2025 Palisades Fire underscores the acute public-safety risk of concentrating multiple transformers and energized equipment above ground in the wildland-urban interface immediately adjacent to homes on Sunset Boulevard. The City’s 2016 Final Staff Report regarding the Existing PTDS declared, without assessment, that the PTDS “would not affect ... fire risks,” a finding that is demonstrably incorrect in light of subsequent conditions and the plainly recognized wildfire ignition risks associated with pole-mounted electrical equipment. The planned addition of a New PTDS would effectively double that ignition risk and therefore presents an unacceptable threat to Plaintiff’s planned residential Property.

12. Accordingly, this action seeks immediate and permanent equitable relief to halt the unlawful construction of the New PTDS and to abate and remove the “temporary” Existing PTDS installed in 2016 that has unlawfully remained in place for nearly 10 years as a continuing visual blight on this designated Scenic Highway.

38. Plaintiff, as the owner of the planned residential Property immediately adjacent to the location of the Existing PTDS and the proposed New PTDS, is entitled to bring this action under the Coastal Act’s liberal standing provisions.

39. The Coastal Act requires a Coastal Development Permit for any “development” in the Coastal Zone. The City’s 2016

Final Staff Report expressly recognizes that a PTDS is a “development” and that the construction of a PTDS “must be authorized by a coastal development permit.”

40. The term “development” under Public Resources Code Section 30106 is expansive and includes “the placement or erection of any solid material or structure.” Courts have held that structures built on or near coastal resources constitute development requiring permits. The New PTDS, consisting of above-ground poles, platforms, transformers, and related electrical infrastructure, constitutes “development” within the meaning of the Coastal Act.

41. Defendants have commenced or are imminently commencing work for the New PTDS at the site—within the Coastal Zone and within five hundred feet of the Sunset Boulevard centerline—without any City or Coastal Commission CDP. 42. Defendants are violating the Coastal Act by proceeding with the construction of the New PTDS without a CDP issued by the City and the Coastal Commission.

43. LADWP’s internal “Emergency Work Design-Build” labeling and a planned completion date of December 31, 2026 do not excuse Coastal Act compliance. The Coastal Act contains its own emergency permitting mechanism, which Defendants did not pursue; Defendants instead are proceeding without any CDP for the New PTDS.

44. An actual controversy exists between Plaintiff and Defendants regarding their respective rights and duties under the California Coastal Act. A judicial declaration is necessary and appropriate at this time in order that the parties may ascertain their rights and obligations with respect to the New PTDS and whether it may lawfully proceed without a Coastal Development Permit.

(Complaint

¶¶ 1-6, 11-12, 38-44.)

City argues that the new PTDS is not subject to the Coastal Act’s permitting requirement, because Gavin Newsom’s Executive Order N-24-25 suspended the Coastal Act’s requirements for projects like the installation of PTDS 336. That order provides:

WHEREAS on January 7, 2025, I proclaimed a State of Emergency to exist in Los Angeles and Ventura Counties due to fire and windstorm conditions that caused multiple fires, including the Palisades, Eaton, Hurst, Lidia, Sunset, Woodley, and Hughes Fires; and

WHEREAS these fires devastated communities across the Greater Los Angeles Area and collectively burned over 47,900 acres, destroying or damaging more than 16,250 structures, including homes, small businesses, and places of worship, placing this disaster among the most destructive in California history; and

WHEREAS since the fires began, I have issued numerous Executive Orders to provide relief to impacted communities, protect survivors and to expedite and aid recovery efforts, including orders suspending permitting requirements to enable Los Angeles to build back quickly, and safer and more resilient than before; and

WHEREAS on January 12, 2025, I issued Executive Order N-4-25, which suspended the California Environmental Quality Act (CEQA) and permitting requirements under the California Coastal Act for projects to rebuild properties destroyed or substantially damaged by these fires, subject to certain conditions, in order to avoid procedural delay and costs for such rebuilding efforts; and

WHEREAS on January 16, 2025, I issued Executive Order N-9-25, which extended those suspensions to new accessory dwelling units on impacted properties and accelerated the occupancy of those units, and also suspended regulatory requirements to expedite the establishment of mobilehomes, manufactured homes, and recreational vehicles as temporary housing while rebuilding efforts on impacted properties proceed; and

WHEREAS on February 13, 2025, I issued Executive Order N-20-25, which clarified eligibility for suspensions under prior orders and provided guidance to local governments, and also extended the expiration dates and validity of certain building permits, and suspended state laws and regulations impeding the construction and reconstruction of housing and facilities as part of recovery efforts; and

WHEREAS for electric, gas, water, sewer and telecommunication infrastructure that must be repaired, restored, replaced,

or rebuilt, utilities and providers and the communities they serve, can expeditiously upgrade and build back more modern, reliable, and resilient infrastructure to meet the communities' immediate and future needs; and

WHEREAS, to the extent that electric utilities elect to rebuild or move previously existing electric infrastructure underground, that work creates opportunities to more cost effectively upgrade other utility and provider equipment or facilities, such as gas, water, sewer, or telecommunication infrastructure by simultaneously building or moving such infrastructure underground or otherwise repairing, replacing or upgrading such infrastructure; and

WHEREAS my prior suspension of CEQA and the California Coastal Act, as clarified by Executive Order N-20-25, applies to electric, gas, water, sewer and telecommunication infrastructure that was substantially damaged or destroyed as a result of this emergency, but certain projects, particularly ones that relocate, move underground, or upgrade existing infrastructure may not qualify for that suspension; and

WHEREAS under the provisions of Government Code section 8571, I find that strict compliance with various statutes and regulations specified in this Order would prevent, hinder, or delay the mitigation of the effects of these Los Angeles County fires and windstorm conditions.

NOW, THEREFORE, I, GAVIN NEWSOM, Governor of the State of California, in accordance with the authority vested in me by the State Constitution and statutes, including the California Emergency Services Act, and in particular, Government Code sections 8567, 8571, and 8627, do hereby issue the following Order to become effective immediately.

IT IS HEREBY ORDERED THAT:

1. With respect to projects to rebuild electric and telecommunication infrastructure substantially damaged or destroyed as a result of this emergency—including the undergrounding, upgrading, and relocation of such infrastructure, if such changes are determined appropriate by the utility or provider—the following are suspended to the extent they would otherwise apply:

a. The California Environmental Quality Act

(Division 13 of the Public Resources Code, commencing with section 21000), and regulations adopted pursuant to that division; and

b. Any requirement to obtain a permit under the California Coastal Act (Division 20 of the Public Resources Code, commencing with section 30000).

2. The suspensions described in Paragraph 1 shall also apply to projects to demolish, repair, replace, relocate or upgrade electric or telecommunication infrastructure in areas adjacent to such projects covered by Paragraph 1.

3. The suspensions described in Paragraph 1 shall also apply to other underground electric, gas, water, sewer, or telecommunication infrastructure projects that can be undertaken at the same time as, and in the same excavated site as, projects undertaken under the authority of Paragraphs 1 or 2.

4. Other state statutes, rules, regulations, and requirements that fall within the jurisdiction of boards, departments, and offices within the California Environmental Protection Agency and the California Natural Resources Agency are hereby suspended to the extent necessary for expediting the projects described in Paragraphs 1-3, subject to the requirements of Paragraphs 5 and 6.

5. Individuals or entities who desire to conduct activities under the suspension of statutes, rules, regulations, and requirements specified in Paragraph 4 shall first request that the appropriate Agency Secretary, or the Secretary's designee, make a determination that the proposed activities are eligible to be conducted under the suspension. The Secretary of the California Environmental Protection Agency and the Secretary of the California Natural Resources Agency shall use sound discretion in applying this Order to ensure that the suspension serves the purpose of accelerating the projects described in Paragraphs 1-3, while at the same time protecting public health and the environment. Each Agency shall maintain on its website a list of all suspensions approved under this Paragraph.

6. Any activities performed under the suspension of statutes, rules, regulations, and requirements specified in Paragraph 4 shall be in accordance with the State Environmental Protection Plan, or a comparable plan describing how such actions will balance expeditious fire recovery and environmental

protection.

I FURTHER DIRECT that as soon as hereafter possible, this Order be filed in the Office of the Secretary of State and that widespread publicity and notice be given of this Order.

This Order is not intended to, and does not, create any rights or benefits, substantive, or procedural, enforceable at law or in equity, against the State of California, its agencies, departments, entities, officers, employees, or any other person.

(RJN

Ex. K, emphasis added.)

City argues that the purpose of the new PTDS is to upgrade electrical infrastructure that was damaged in the Palisades fire and infrastructure in areas adjacent to such projects, and is therefore exempt from the Coastal Act's permitting requirements as a matter of law.

Specifically, City argues that these upgrades were determined appropriate by the utility provider in its Palisades Infrastructure Restoration Plan. (RJN Ex. N.) That plan describes planned upgrades to Distributing Station 29 (DS-29), which is described as follows:

Distribution Station 29 (DS-29) DS-29 historically served as the principal distribution substation for the Pacific Palisades community. The station's role was to receive power at 34.5 kV (from RS-K) and step it down to 4.8 kV for neighborhood distribution. From DS-29, several primary circuits, including 29-03, 29-05, and 29-06, supplied residential and commercial load centers throughout the Pacific Palisades area." (Ex. N at p. 8.)

Pole-Top Distributing Stations (PTDS) In 2017 and 2018, LADWP installed two compact PTDS. The substations enhance voltage support and reliability during peak demand or contingency events, and to supplement local distribution and alleviate loading on DS-29. The PTDS were sited strategically at:

‡ Temescal Canyon Road, south of Sunset

Boulevard (constructed in 2017)

‡ Sunset Boulevard at Marquez Avenue
(Bernheimer Lot) (constructed in 2018)

(RJN

Ex. N at p. 8.) The plan explains the
fire damage to DS-29 as follows:

According to LADWP Council File No.

25-0006-S23, dated March 20, 2025, DS-29 sustained significant fire damage,
particularly in the outdoor rack area. Affected components included control
wiring, lighting systems, and cable trench covers. The data on the Fire's
immediate effects serve as the foundation for prioritizing recovery actions and
guiding future resilience planning.

(RJN

Ex. N at p. 9.) The plan for the upgrades is stated as follows: "These LADWP
Power projects focus on restoring Distributing Station 29 and upgrading it to
support related initiatives, including the 12 kV system conversion and
undergrounding efforts." (RJN Ex. N at
p. ES-15.) The plan provides for:

DS-29 Station Upgrades – LADWP capital
upgrades supporting modernization and 12-kV conversion at Distribution Station
29

Conversion of DS-29 to 12 kV: Replacement of
the legacy 4.8 kV equipment.

(RJN

Ex. N at ES-14, ES-23.)

Plaintiff argues in opposition that
whether the City actually complied with all the requirements of
EO-N-24-25 is a factual question beyond the four corners of the complaint and
judicially noticeable documents.

Further, Plaintiff points out that Exhibit N is not the proper subject
of judicial notice. Rather, it is a
report prepared by a third party for LADWP itself, and the City may not

bootstrap itself into legitimacy as a matter of law by relying on a report prepared at the behest of the utility company itself, as opposed to the governmental actors who can provide official exemptions from the Coastal Act's requirements.

In reply, City argues that it asks the Court to take judicial notice of the existence of Exhibit N to establish that the utility deemed the new PTDS appropriate, as required by subdivision 1 of EO-N-24-25.

Ultimately, however, even if Exhibit N were the proper subject of judicial notice (which, as discussed above, it is not), the Court could not take judicial notice of the truth of the contents therein. As such, the Court cannot take judicial notice of the fact that LADWP deemed the work appropriate.

Whether the City complied with the exemption requirements is a factual question outside the four corners of the complaint and documents of which the Court may properly take judicial notice.

ii.

Second Cause

of Action – Violations of the California Coastal Act – Existing PTDS

Plaintiff alleges:

46. The Property and the Existing PTDS are definitively located within the California Coastal Zone as defined by the Coastal Act.

47. Under Public Resources Code Section 30600(a), any person wishing to perform or undertake any development in the coastal zone must obtain a Coastal Development Permit. The continued operation of the Existing PTDS beyond its temporary authorization constitutes ongoing unpermitted development in the Coastal Zone.

48. CDP No. 16-14 and the Coastal Commission's CDP Waiver authorized only a temporary PTDS that was to be removed once a permanent distribution station became operational.

49. CDP No. 16-14 also imposed a two-year commencement/expiration requirement. Nearly ten years later, the Existing PTDS remains in operation at the site, with no timely extension having been sought or granted and no permanent station in operation.

50. Continued maintenance and operation of the Existing PTDS beyond its expressly temporary authorization and outside the CDP's term constitutes an ongoing violation of the Coastal Act and of the City's local coastal authorization. The Coastal Act recognizes continuing violations; each day unpermitted development remains in place is a new violation.

51. The Existing PTDS also fails to minimize risks to life and property in a high fire-hazard area.

52. The Existing PTDS also creates a visual blight that is inconsistent with the City of Los Angeles General Plan for a designated Scenic Highway.

53. Plaintiff seeks a declaration that the Existing PTDS is operating outside its lawful authorization and a mandatory injunction requiring Defendants to remove the Existing PTDS within a reasonable and safe schedule set by the Court, coordinated to maintain public safety and service continuity.

54. Plaintiff seeks declaratory and equitable relief to restrain the continuing violation of the Coastal Act arising from the Existing PTDS.

55. An actual controversy exists between Plaintiff and Defendants regarding their respective rights and duties under the California Coastal Act with respect to Defendants' maintenance of the Existing PTDS. A judicial declaration is necessary and appropriate at this time in order that the parties may ascertain their rights and obligations with respect to the Existing PTDS.

(Complaint

¶¶ 46-55.)

City demurs on the grounds that Plaintiff mischaracterizes the two-year commencement condition of CDP No. 16-14, there is no such condition in the Commission's de minimis waiver, and challenges to the sufficiency of the Commission's findings when they issued decisions relating to existing PTDS 198 are barred by the statute of limitations and failure to exhaust administrative remedies.

CDP No. 16-14 provides:

DEVELOPMENT DESCRIPTION: The project consists of two 61-foot high, 18.4-inch diameter poles, a platform measuring 26 feet x 7 feet 5 inches, three 833-KVA transformers measuring 6 feet 9 inches tall x 4 feet 7 inches wide, cross arms, circuit breakers, switches, and a controller. The project also requires the installation of an underground vault, conduits, and cables. The underground substructure will be connected to the PTDS via underground cable terminations. The underground substructure work consists of approximately 1,000 feet of trench for conduit installation with a 9 feet 4 inches x 17 feet 4 inches substructure near the PTDS. The trench will be from two existing substructures on Marquez and Sunset to the new substructure and the PTDS. The PTDS is designed, constructed and maintained to meet or exceed California Public Utility Commission (CPUC) safety rules and regulations. The PTDS would be temporary, and will be removed once a new permanent distribution station is operational.

(RJN

Ex. O.) As

the final staff report for CDP Application No. 16-14 explains:

Currently, the power load in Pacific Palisades is being distributed by a single distribution station, Distribution Station 29 (DS-29), constructed almost 80 years ago. The heaviest power load is also being distributed on circuits that are furthest away from DS-29, which negatively impacts reliability for the entire area. There is no space at DS-29 to build more capacity, and LADWP has not yet selected a site for a new D.S. As a temporary measure to relieve three overloaded 4,800 volts circuits that currently serve the Pacific Palisades community, Distribution Construction and Maintenance (DC&M) proposes to install two PTD Stations. To prevent power outages, limit outage durations, and improve power quality for our Pacific Palisades customers. Without the PTD Stations, the next unscheduled outage that occurs due to natural causes or equipment failures, may last for several hours

or days until permanent circuit repairs may be completed" (Ref. 9). Public services and facilities in the areas include the Pacific Palisades Medical Group, Pacific Palisades Veterinary Clinic, and fifteen (15) schools.

(RJN
Ex. P.)

City argues that although CDP No. 16-14 contemplates a future, permanent distribution station, the permitting, construction, and permanent operation of that future, theoretical permanent distribution station was not part of the 2-year requirement. Rather, there was a two-year time limit to commence work on the temporary PTDS authorized by the CDP:

Work authorized by this permit must commence within two years from the effective date of this permit. Any extension of time of said commencement date must be applied for prior to expiration of the permit.

(RJN
Ex. O at p. 5, para. VII.)

Here, the Court agrees with City. The plain language of CDP No. 16-14 clearly indicates that work on the temporary PTDS structure authorized by CDP No. 16-14 must begin within two years, unless an extension is timely requested and received. It does not require, as Plaintiff alleges, that work on the permanent structure that will eventually replace the existing PTDS must be commenced within two years. As City points out, construction of a permanent station requires its own set of plans, permits, and construction.

Plaintiff argues that the Court must construe the allegations in a light most favorable to Plaintiff. While this is true, the Court need not accept as true allegations that are contradicted by matters of which judicial notice may be taken. (Vance v. Villa Park Mobilehome Estates (1995) 36 Cal.App.4th 698, 709.)

Therefore, the Court sustains City's demurrer to the second cause of action.

iii.

Statute of
Limitations/Exhaustion of Administrative Remedies

In the alternative, Plaintiff's challenges to that PTDS-198 are also barred by the applicable statute of limitations and/or failure to exhaust administrative remedies.

Specifically, City argues that both the City and the Commission already adjudicated the issues of whether PTDS-198 posed fire risks to the coastal zone (RJN Ex. P at p. 5) or constituted a visual blight in violation of Mobility Plan 2035 (RJN Ex. P at p. 7.) Finding "no substantial issue" on appeal of the CDP No. 16-14 (RJN Ex. S), the Commission then issued the waiver (RJN Ex. Q). The Commission analyzed the same issues Plaintiff argues now, and found they lacked merit. (RJN Ex. V.)

Plaintiff failed to challenge those adverse findings made in administrative appeals in 2017, and as such, Plaintiff's challenges to PTDS-198 are now barred.

Plaintiff argues that it does not challenge the issuance of CDP No. 16-14, just the City's implementation of it by failing to timely construct a permanent distribution station to replace PTDS-198.

But as discussed above, CDP No. 16-14 pertains only to the construction of PTDS-198, not the contemplated future permanent structure that will eventually replace it. As such, any challenges to PTDS-198 are either outside the scope of the plain language of CDP No. 16-14 or barred by the failure to further appeal or otherwise raise these issues in court in 2017.

Therefore, the statute of limitations/failure to exhaust administrative remedies forms an alternative grounds for the Court to sustain the demurrer to the second cause of action.

iv.

Third Cause
of Action – Violation of the City of Los Angeles General Plan

Plaintiff alleges:

57. Plaintiff is a person interested in a written instrument, namely the City of Los Angeles General Plan Mobility Plan 2035, and desires a declaration of the parties' rights and duties with respect to that instrument as applied to the Existing PTDS and the proposed New PTDS.

58. Under Code of Civil Procedure Section 1060, Plaintiff may bring an action for declaratory relief in cases of actual controversy relating to the legal rights and duties of the respective parties.

59. Sunset Boulevard at the site is a designated Scenic Highway.

60. The City's Mobility Plan 2035 requires that, to the maximum extent feasible, all new or relocated public utility distribution facilities within five hundred feet of the scenic highway centerline be placed underground; only where undergrounding is not feasible may screening be used.

61. The Existing PTDS location is approximately ninety feet from the Sunset Boulevard centerline, well within the five hundred foot zone.

62. The City's approval documents for the Existing PTDS made no feasibility finding for foregoing undergrounding of the visually dominant above-ground PTDS equipment and instead relied on "the majority" being underground and cosmetic screening, which is legally insufficient under the Mobility Plan's hierarchy.

63. The New PTDS would compound the inconsistency by adding a new above-ground PTDS within the five-hundred-foot zone without any feasibility analysis.

64. Plaintiff seeks a declaration that any above-ground PTDS facilities within five hundred feet of the Sunset Boulevard centerline are inconsistent with the City's General Plan and must be placed underground absent an evidence-based finding that undergrounding is not feasible.

65. Plaintiff further seeks an injunction prohibiting Defendants from proceeding with any New PTDS above-ground facilities at this location and requiring compliance with the Mobility Plan.

66. An actual controversy exists between Plaintiff and Defendants regarding their respective rights and duties under the City of Los Angeles General Plan Mobility Plan 2035.

67. A judicial declaration is necessary and appropriate at this time in order that the parties may ascertain their rights and obligations with respect to the undergrounding mandate and the lawfulness of above-ground PTDS facilities in the scenic highway corridor.

(Complaint ¶¶ 57-67.)

The City points out that the Complaint references an appendix to the Mobility Plan, and argues that, while agencies must make findings “to bridge the analytic gap between the raw evidence and ultimate decision or order” (*Topanga Assn. for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 515), the statute governing the permit or agency decision determines the scope and nature of the required findings. Further, a bare recitation of the findings listed in the statute suffices to survive judicial scrutiny. (See *Young v. City of Coronado* (2017) 10 Cal.App.5th 408, 420-423.)

Here, City argues the Act requires findings that “the interpretive guidelines have been reviewed” and the proposed development conforms with the requirements of Public Resources Code section 30604, subdivision (a), which requires “that the proposed development is in conformity with Chapter 3” and “will not prejudice the ability of the local government to prepare a local coastal program that is in conformity with Chapter 3.” (Pub. Res. Code, § 30604, subd. (a).) Further, if the development is located between the nearest public road and the sea or shoreline of any body of water located within the coastal zone, the local government shall also make specific findings required by Public Resources Code section 30604, subdivision (c) which requires a finding “that the development is in conformity with the

public access and public recreation policies of Chapter 3[.]” (14 Cal. Code Regs, § 13311.)

Here, the Court notes that these findings were expressly made. (See RJN Ex. P at pp. 3-7.)

In opposition, Plaintiff points out that a city is required to abide by the plain terms of its own Plan, regardless of whether state law would independently impose the same requirements on it. (See, e.g., *Orange Citizens for Parks & Recreation v. Superior Court* (2016) 2 Cal.5th 141, 155-160.)

City also argues that the Mobility Plan does not actually mandate the formal findings Plaintiff alleges. The Mobility Plan requires: “To the maximum extent feasible, all new or relocated electric, communication, and other public utility distribution facilities within five hundred feet of the center line of a Scenic Highway shall be placed underground.” (RJN Ex. T at p. 177.)

While the Court agrees that this does not necessarily mandate that the City articulate a specific finding, it does require that public utility facilities be placed underground to the maximum extent feasible. Whether it was feasible to place the new PTDS underground remains a factual question to be resolved at later stages of the litigation.

v.

Fourth Cause
of Action – Continuing Public Nuisance

A “nuisance” is “[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance.” (Civ. Code, § 3479.)

A nuisance may be public, private, or both. (*Koll-Irvine Center*

Property Owners Assn. v. County of Orange (1994) 24 Cal.App.4th 1036, 1041.) "Unlike public nuisance, which is an interference with the rights of the community at large, private nuisance is a civil wrong based on disturbance of rights in land." (Ibid.) "So long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance." (Ibid.)

"[I]n determining whether a particular activity constitutes a public nuisance, a court considers three elements: (1) the proscribed act, (2) whether the result of the act interferes with the comfortable enjoyment of life or property, and (3) whether the act affects a sufficient number of persons." (People v. McDonald (2006) 137 Cal.App.4th 521, 535.)

Here, Plaintiff alleges:

69. Under California Civil Code Section 3479, a nuisance is defined as "anything which is injurious to health, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property."

70. Under Civil Code Section 3480, a public nuisance is "one which affects at the same time an entire community or neighborhood, or any considerable number of persons."

71. The continued presence of the Existing PTDS within the scenic highway corridor without valid authorization, and the imminent addition of a second PTDS at the same location, constitute conditions that are each independently injurious to health and obstruct the free use of property by creating visual blight and compounding wildfire ignition hazards in a Very High Fire Hazard Severity Zone. The Existing PTDS and proposed New PTDS concentrate multiple transformers and energized electrical equipment above ground, which creates a substantial a fire hazard risk that unreasonably interferes with public safety and the comfortable enjoyment of life and property in the surrounding community.

72. These conditions affect an entire community and neighborhood, including the residents of Sunset Boulevard and the

Pacific Palisades community who travel along this designated scenic highway corridor, and constitute a public nuisance within the meaning of Civil Code Section 3480. The public has a common right to the protection of coastal scenic resources and to freedom from unreasonable wildfire ignition risks concentrated in the public right-of-way.

73. In addition to the public injury,

Plaintiff, as the immediately adjacent property owner, suffers special injury distinct from the public at large, entitling Plaintiff to maintain this action for public nuisance. Plaintiff's special injury includes direct interference with the use and enjoyment of the Property, interference with a visual corridor that Plaintiff is required to maintain, degradation of scenic quality and property values, and heightened wildfire ignition risk to Plaintiff's planned residential structures from the concentration of above-ground electrical equipment in close proximity to the Property.

74. Plaintiff seeks injunctive relief halting

any further construction of the New PTDS along the Scenic Highway and ordering removal of the Existing PTDS.

75. An actual controversy exists between

Plaintiff and Defendants regarding whether the Existing PTDS and proposed New PTDS constitute a public nuisance subject to abatement.

76. A judicial declaration is necessary and

appropriate at this time in order that the parties may ascertain their rights and obligations.

(Complaint

¶¶ 69-76.)

City demurs on the ground that a

visual blight resulting in the loss of a view is insufficient to state a claim for nuisance. (See *People v. Oliver* (1948)

86 Cal.App.2d 885, 887-888 [unsightly condition of premises alone will not make the condition a public nuisance]; *Oliver v. AT&T Wireless Services* (1999)

76 Cal.App.4th 491, 534 ["The displeasing height and shape of the new tower cannot, in and of itself, make it a nuisance to those who sit on the other side of the property line"].)

In opposition, Plaintiff cites to Clary v. City of Crescent City (2017) 11 Cal.App.5th 274, 292, where the appellate court determined that “[i]ndecent or offensive to the senses is sufficiently broad to cover conditions that constitute an eyesore” as it pertained to overgrown vegetation and trash. Plaintiff also points out that in People v. Oliver, the appellate court noted that “[a] fire hazard, at least when coupled with other conditions, can be found to be a public nuisance and abated.” (People v. Oliver, supra, 86 Cal.App.2d at p. 889.)

From these cases, the rule appears to be that while visual blight alone is insufficient to create a nuisance, a visual blight in combination with some other danger or illegality, such as a fire hazard or overgrown vegetation that violates a nuisance ordinance, can constitute a public nuisance.

Here, because the question of whether the new PTDS tower was legally constructed remains an open one, the question of whether the new PTDS tower constitutes a public nuisance similarly remains an open question to be resolved at later stages of the litigation.

vi.

Fifth Cause

of Action – Violation of Conditions of Coastal Development Permit No. 16-14

As to the fifth cause of action, Plaintiff alleges:

79. CDP No. 16-14 imposes specific conditions including: (a) a two-year commencement/expiration term; and (b) operation only as a temporary facility to be removed once a permanent station is operational. Defendants have breached these permit conditions by: (i) failing to implement a permanent power solution for the Palisades community; and (ii) continuing to operate the Existing PTDS beyond the two-year permit term without obtaining a timely extension. Each of these actions constitutes development inconsistent with the previously issued CDP.

80. Plaintiff seeks a declaration that Defendants are in violation of CDP No. 16-14 conditions and an injunction compelling compliance, including removal of the Existing PTDS.

(Complaint
¶¶ 79-80.)

As discussed above, because the plain terms of CDP No. 16-14 do not require a permanent station to be built within the two year time-frame, the Court similarly sustains City's demurrer to the fifth cause of action.

2.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here,

Plaintiff has failed to meet its burden as it does not articulate any facts that can be added to the Complaint to cure the deficiencies identified above regarding the second and fifth causes of action, nor is the Court aware of any facts that could cure the problem of Plaintiff's misinterpretation of the language of CDP No. 16-14 or the statute of limitations/administrative remedies exhaustion issue barring challenges to the old PTDS-198.

CONCLUSION AND ORDER

For the reasons stated, the Court sustains without leave to amend City's demurrer to the second and fifth causes of action, but overrules City's demurrer to the first, third, and fourth causes of action.

City shall file and serve an Answer to the Complaint on or before August 27, 2026.

City shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 13, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court

[1] "Because a demurrer raises only questions of law, trial courts ordinarily do not consider evidence in connection with a demurrer. But a court may consider matters subject to judicial notice when ruling on a demurrer

. . . ." (See *Mireskandari v.*

Gallagher (2020) 59 Cal.App.5th 346, 358, citation omitted.) Accordingly, the Court did not review and consider the declarations filed in support of, or in opposition to the demurrer, and finds any evidentiary objections regarding such declarations are moot.